

12. 9:00 AM CASE NUMBER: N23-0180
CASE NAME: THOMAS BUTT VS. EDUARDO MARTINEZ

TAX COSTS

FILED BY:

TENTATIVE RULING:

Petitioner and plaintiff Thomas Butt ("Petitioner") filed a Motion to Strike or Tax Costs on February 9, 2026 (the "Motion to Tax Costs"). The Motion to Tax Costs was initially set for hearing on June 22, 2026. The hearing was subsequently continued to August 31, 2026.

Background

A judgment was entered on January 20, 2026 (the "Judgment"). The Judgment determined that defendants and respondents ("Defendants") are the prevailing parties, after a Motion for Judgment on the Pleadings as to Petitioner's Verified Petition was granted without leave to amend. See Judgment, p. 2.

Thereafter, a Memorandum of Costs was filed by defendants on February 9, 2026 (the "Memo of Costs"). The Memo of Costs seeks an award of \$3,400.19 in total costs.

Petitioner then brought this Motion to Tax Costs.

No opposition has been filed.

In connection with the initial hearing date on June 22, 2026, the Court issued a tentative ruling ordering the parties to meet and confer regarding the Cost Items at Issue, as set forth below. That tentative ruling was adopted as the order of the Court. See Order entered June 22, 2026 (the "June 22nd Order").

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18.

The Motion to Tax Costs takes issue with three cost items (the "Cost Items at Issue"):

- 1. Cost Item 1 in the Amount of \$495 for Filing and Motion Fees.** Petitioner contends that these are not recoverable because "these fees are waived by statute for public entities and thus not incurred."
- 2. Cost Item 9 in the Amount of \$1,754.36 for Court-Ordered Transcripts.** Petitioner asserts that "no transcripts were ordered by the Court"
- 3. A Portion of Cost Item 14 in the Amount of \$243.00 for Fees for Electronic Filing or Service.** Petitioner contends that "the claimed personal service expense is not an electronic filing or service fee and is improperly included in this category."

Pursuant to the Court's June 22nd Order, Defendants were ordered file a declaration under penalty of